HARLEY MILLER Law Firm

2025

Law and Port Management

Shaping the Future of Investment and Sustainable Development

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INTRODUCTION

Vietnam's seaport system plays a pivotal role in the national economy, facilitating exports and integrating the country into global supply chains. Currently, Vietnam has 286 seaports, categorized into five port groups, with a total berth length exceeding 96 km and an annual cargo throughput of over 706 million tons. Notably, multiple international shipping routes have established direct connections with Vietnam, with major ports such as Lach Huyen and Cai Mep - Thi Vai serving as key maritime hubs.

According to the Vietnam Maritime Administration, by 2030, the country's seaport system is projected to handle between 1,140 and 1,423 million tons of cargo, including 38 to 47 million TEUs of containerized goods, while accommodating over 10 million passengers. Looking ahead to 2050, Vietnam aims to develop a modernized port system that meets regional and international standards. To achieve this goal, approximately VND 313 trillion in investment capital will be required by 2030, primarily sourced from non-budgetary funds and private enterprises. Strategic planning remains essential for optimizing resource allocation, enhancing competitiveness, and ensuring sustainable development. However, alongside rapid modernization, the seaport sector faces environmental challenges, necessitating a transition towards "green port" operations to balance economic growth with environmental sustainability.

This report examines the legal framework, planning, investment, and operational aspects of Vietnam's seaport system while assessing both challenges and opportunities for future development. It provides strategic insights for policymakers, investors, and businesses to optimize operations and foster sustainable growth in the maritime sector.

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Core Legal Framework

Vietnam Maritime Law

The foundation of Vietnam's seaport management system rests on several key legislative documents, including the Maritime Code and specific seaport management decrees. These regulations define the fundamental principles of port operations, establishing clear guidelines

Seaport Management Decrees

The decrees cover all aspects of seaport operations within Vietnamese territorial waters, some key decrees include:

- Decree No. 58/2017/NĐ-CP details certain provisions of the Vietnam Maritime Code on the management of maritime activities (amending and supplementing several decrees)
- Decree No. 37/2017/NĐ-CP regulates the business conditions for seaport operations.
- Decree No. 21/2012/NĐ-CP regulates the management of seaports and navigational channels.
- Decree 160/2016/ND-CP regulates conditions for maritime transport business, ship agency service business, and towage service business

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Seaport Investment and Planning

Main Topics

SEAPORT PLANNING

SEAPORT INVESTMENT LICENSES

BOT INVESTMENT MECHANISM

INVESTMENT INCENTIVE POLICIES

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Seaport Investment and Planning

Seaport Planning

Refer to the full article at: Strategic Seaport Planning in Vietnam: Comprehensive Development Guide

1. Strategic Planning Components

1. Development of Seaport Infrastructure
2. Improvement of Maritime Legal Framework
3. Human Resource Development
4. Advancement of Science and Technology
5. Environmental Protection
6. National Defense and Security Assurance

2. Development Phases

1. Master Planning Process

- Defining planning tasks
- Formulating the master plan
- Appraisal and approval of the plan
- Announcement and implementation of the plan

2. Implementation Stages

- Planning and approval
- Announcement and execution of the plan
- Investment and development of seaport infrastructure
- Monitoring, evaluation, and adjustment of the plan
- Acceptance and project completion

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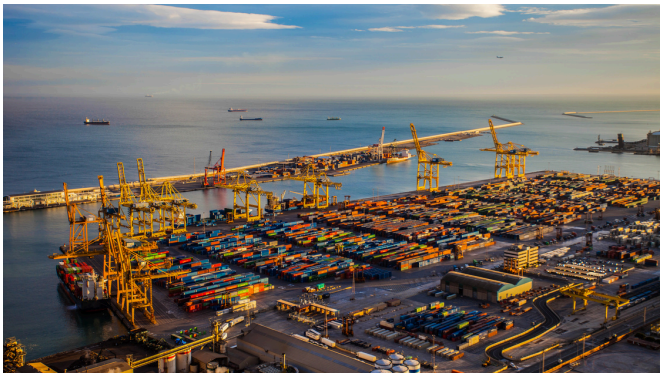
Seaport Investment and Planning

Seaport Investment Licenses

Refer to the full article at: How to Obtain Seaport Investment Licenses in Vietnam: Step-by-Step Guide

1. Required Documentation

1. Application Form
2. Business Registration Certificate
3. List of Key Positions & Labor Contracts
4. Port Operation Plan



2. Step-by-Step Application Process

1. Consultation and Initial Preparation
2. Preparing the License Application
3. Submitting the Application
4. Application Receipt and Review
5. Evaluation and Verification of the Application
6. Issuance of the Certificate of Eligibility
7. Project Implementation and Compliance

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Seaport Investment and Planning

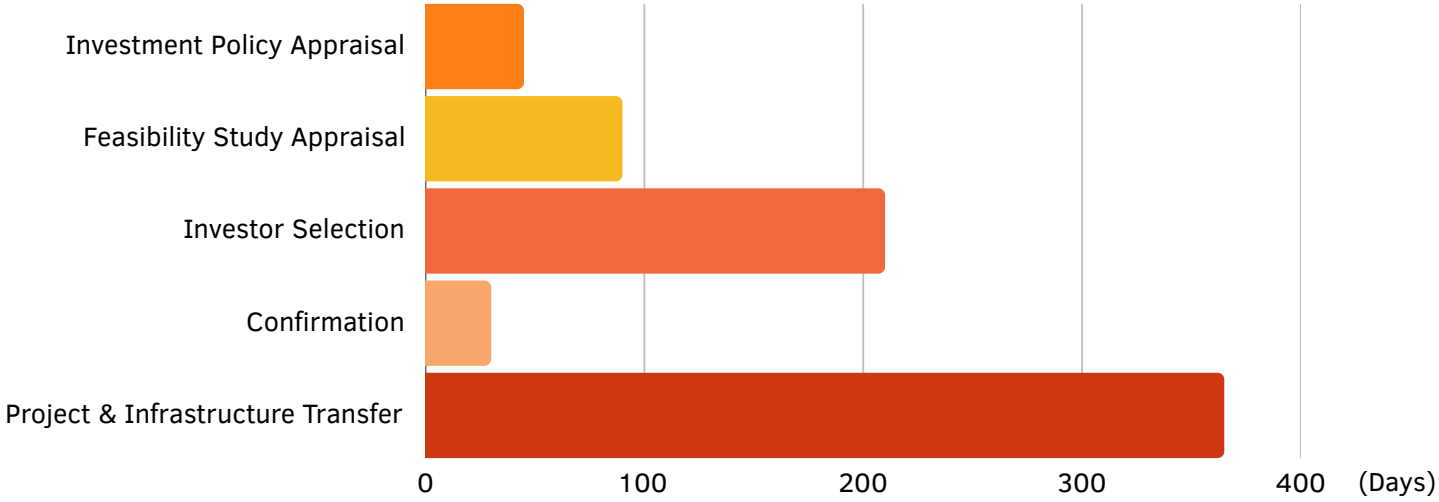
BOT Investment Mechanisms

Refer to the full article at: BOT Investment in Vietnamese Seaports: Guidelines & Opportunities

1. Project implementation procedures

1. Pre-feasibility & Investment Policy Approval
2. Feasibility Study & Project Approval
3. Investor Selection & Contract Signing
4. Project Implementation
5. Completion & Infrastructure Confirmation
6. Asset Transfer

2. Key timelines



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Seaport Investment and Planning

Investment Incentive Policies

Refer to the full article at: Vietnam Seaport Investment Incentives: Complete Policy Overview

1. Types of Investment Incentives

1. Tax Incentives

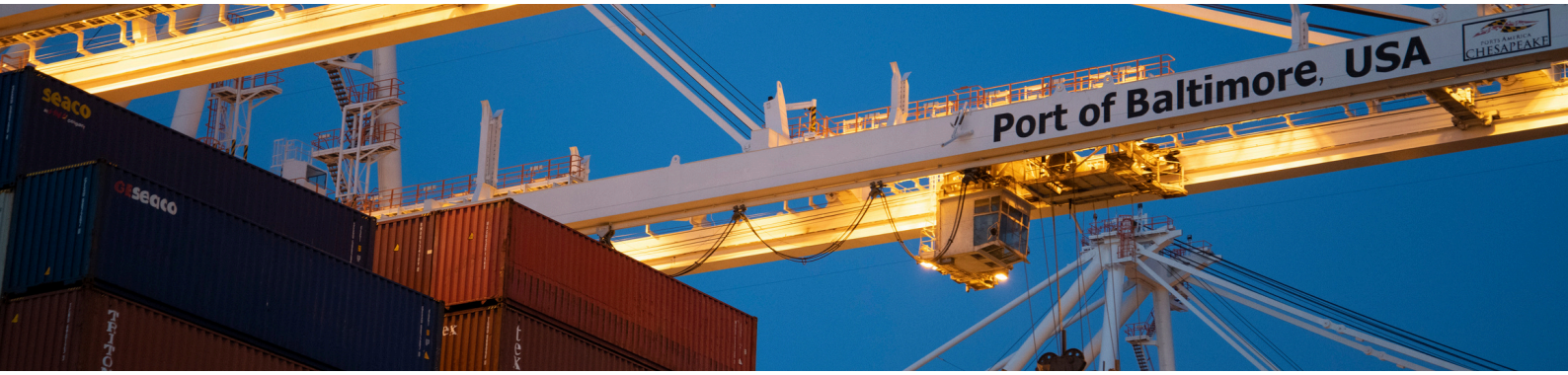
- Corporate Income Tax (CIT) reduction to 10% for 15 years
- CIT exemption for up to 4 years and a 50% reduction for up to 9 subsequent years
- Import duty exemption for fixed assets

2. Land Use Privileges

- Extension of land lease terms (up to 50 years)
- Exemption or reduction of land rental fees
- Support for site clearance and compensation

2. Investment Models and Mechanisms

1. BOT/PPP Opportunities
2. Joint Venture Options



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Operational Requirements for Seaports

1. Maritime Safety Regulations

2. Seaport Technical Standards

3. Maritime Transport Regulations

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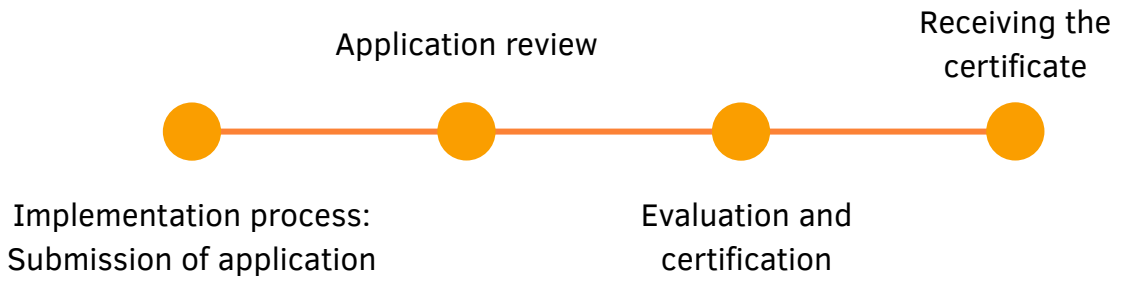
Operational Requirements for Seaports

Maritime Safety Regulations

Refer to the full article at: Maritime Safety Compliance: Essential Guidelines for Vietnamese Ports

Process of issuing the DoC



Processing time: 1 working day from the date of evaluation completion

Application dossier

1. Application form.
2. Company's safety management system documents (paper copy for direct/postal submission, electronic copy for online submission) – for preliminary or initial evaluation.
3. Documents proving ship ownership/management or a commitment to fulfilling responsibilities under the ISM Code (paper or electronic copy depending on submission method) – for preliminary or initial evaluation.

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Operational Requirements for Seaports

Seaport Technical Standards

Refer to the full article at: Technical Standards for Vietnamese Seaports: Comprehensive Requirements

Infrastructure Requirements and Specifications

1. Basic Infrastructure

- Structural Safety Requirements
- Operational Capacity
- Durability and Longevity

2. Terminal Facilities

- Vessel Load Capacity
- Berth Length
- Port Water Areas
- Berth Elevation
- Mooring Buoys

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Operational Requirements for Seaports

Seaport Technical Standards

Operational Technical Standards

1. Design Standards

- Loads and impacts
- Material requirements
- Foundations and soil improvement
- Berth structures
- Breakwaters
- Navigation channels and harbor basins
- Dry docks, ship locks, slipways, and shipyard berths
- Dredging and land reclamation
- Other port structures

2. Operational Procedures

- Vessel Navigation and Port Entry
- Inspection and Structural Safety AssurancePort Water Areas
- Management of Oil and Petroleum Import/Export Terminals
- Passenger Terminal Operations

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Operational Requirements for Seaports

Maritime Transport Regulation

Refer to the full article at: Vietnam's Maritime Transport Laws: Updated Guidelines for 2025

Business Conditions

1. **General:** Must be a legally established business or cooperative.
2. **International transport:**
   - Finance: Minimum guarantee of VND 5 billion or insurance.
   - Vessels: At least one legally registered ship.
   - Personnel: Must have safety and security management units; staff must be trained and certified.
3. **Domestic transport:** At least 1 Vietnamese-flagged ship meets national standards.
4. **Foreign organizations in domestic transport:**
   - Must form a joint venture (foreign ownership ≤ 49%).
   - Foreign crew ≤ 1/3; captain or chief officer must be Vietnamese.

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Operational Requirements for Seaports

Maritime Transport Regulation

Licensing Documents

1. Business License for Maritime Transport:

- Application form
- Ship Registration Certificate

2. Domestic Maritime Transport License for Foreign Ships:

- Application form
- Ship Registration Certificate
- Safety & Environmental certificates
- Relevant foreign shipowner documents

Licensing Process

Submission	Review: Within 2 days	Approval: Within 5 days
Apply to the Vietnam Maritime Administration	The Administration requests modifications or issues a receipt	The Administration grants the Certificate or provides a written rejection

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Administrative and Customs Procedures

Main Topics

SEAPORT ADMINISTRATIVE PROCEDURES

SEAPORT CUSTOMS PROCEDURES

SHIP REGISTRATION REGULATIONS

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Administrative and Customs Procedures

SEAPORT ADMINISTRATIVE PROCEDURES

Refer to the full article at: Navigate Vietnam's Seaport Administrative Procedures: Expert Guide

Procedures for Foreign Ships to Enter and Leave Ports

Approvals and Permits Related to Maritime Activities

Management and Supervision of Activities in Port Waters

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Administrative and Customs Procedures

SEAPORT CUSTOMS PROCEDURES

Refer to the full article at:
Vietnam Seaport Customs: Complete Processing Guidelines

1. Customs Clearance Process

- Prepare customs documents
- Submit the customs declaration
- Document reception and inspection
- Declaration classification
- Tax payment and financial obligations
- Customs clearance

2. Required Documentation

- Customs documents for export goods
- Customs documents for import goods

3. Special Procedures

- Temporary Import/Export
- Transit Goods

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Administrative and Customs Procedures

SHIP REGISTRATION REGULATIONS

Refer to the full article at: Ship Registration in Vietnam: Requirements & Procedures Guide

1. Types of Ship Registration

- Permanent ship registration
- Temporary ship registration
- Time-limited ship registration
- Change of registration
- Registration of ships under construction
- Small ship registration

2. Step-by-Step Process

Submit application to Vietnam Maritime Administration

Complete vessel inspection and technical assessment

Provide required documentation

Pay applicable fees

Receive registration certificate

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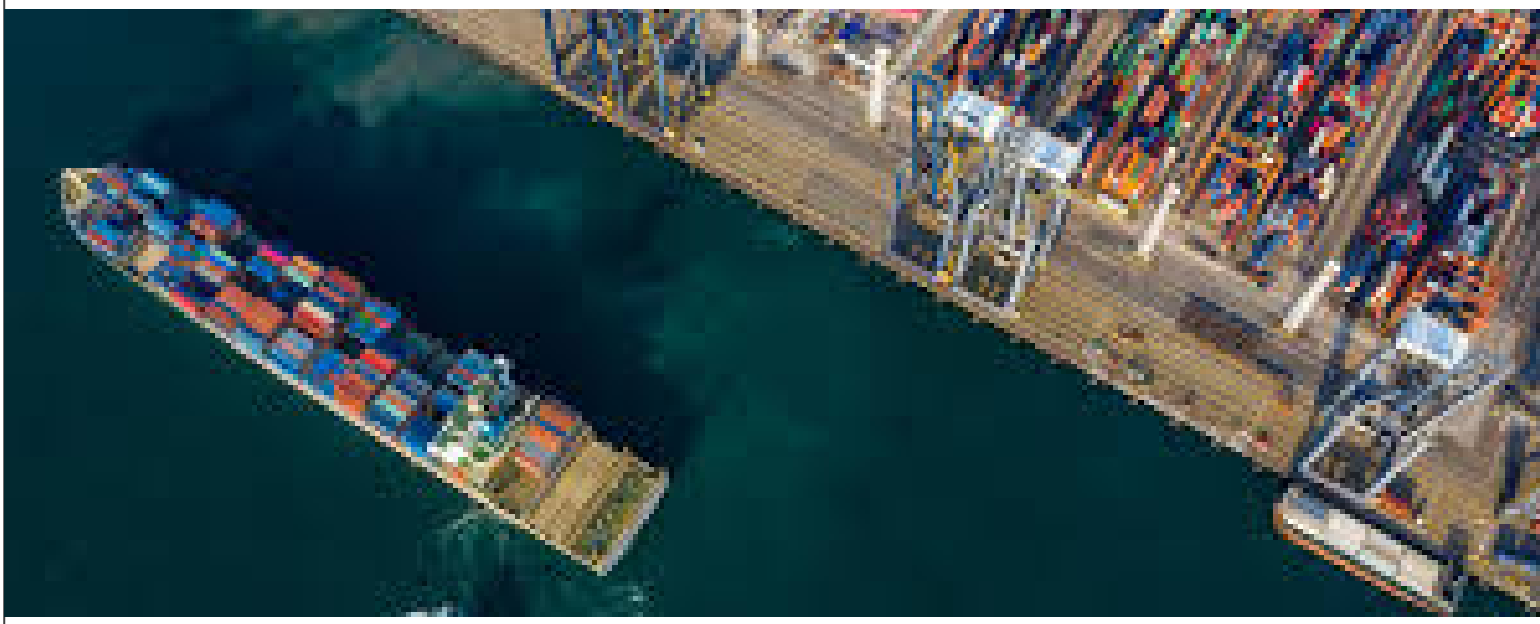
Legal Compliance and Sustainable Development

1. Seaport Environmental Protection

2. Seaport Labor Regulations

3. Seaport Tax Policies



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Legal Compliance and Sustainable Development

Seaport Environmental Protection

Refer to the full article at: Environmental Compliance in Vietnamese Seaports: Best Practices

KEY COMPLIANCE AREAS

1. Waste Management Protocols
2. Air Quality Control
3. Water Quality Management

ENVIRONMENTAL PERMIT

An environmental impact assessment must be conducted, and an Environmental Permit must be obtained before the project is officially put into operation.

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Legal Compliance and Sustainable Development

Seaport Labor Regulations

Refer to the full article at: Vietnam's Seaport Labor Laws: Employer Guidelines 2025

BASIC REGULATIONS

1. Working Hours and Shift
2. Workplace Safety
3. Compensation and Benefits
4. Training and Certification

FOREIGN WORKER REGULATIONS

1. Recruitment: Only for positions Vietnamese workers cannot fill, with approval required.
2. Employers must report 30 days in advance; authorities respond within 10 days.

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Legal Compliance and Sustainable Development

Seaport Tax Policies

Refer to the full article at: Vietnamese Seaport Taxation: Current Policies & Requirements

TAX OBLIGATIONS

1. Corporate Income Tax
2. Value Added Tax
3. Property and Land Use Taxes
4. Import/export tax
5. pecial consumption tax on certain goods
6. Environmental protection tax

TAX INCENTIVES AND EXEMPTIONS

1. Import tax exemption for fixed asset goods
2. 5-year import tax exemption for raw materials and supplies not produced domestically
3. Corporate income tax exemption and reduction for certain projects.

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Conclusion

Vietnam's seaport system is undergoing a transformation toward modernization and global integration, requiring strategic investments and regulatory enhancements to meet future demands. As the sector evolves, balancing economic growth with strengthening the legal framework will become increasingly important. With a clear vision and collaboration among policymakers, investors, and businesses, Vietnam can establish a competitive and resilient maritime network that supports sustainable development both nationally and regionally.

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